

25STCV38552 25STCV38552

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-18

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Case Number: 25STCV38552 Hearing Date: September 18, 2026 Dept: 617

Dept.

617

Date:

9-18-26

Case

#: 25STCV38552

Trial

Date: None Set

TRANSFER/CHANGE VENUE

MOVING

PARTY: Defendant, California Department of Transportation

RESPONDING

PARTY: Plaintiff, Bridgette McGowan

RELIEF

REQUESTED

Motion

to Change Venue/Transfer the Action to San Diego

County

SUMMARY

OF ACTION

Plaintiff

Bridgette McGowan formerly worked as an Operator I for Defendant California Department of Transportation at its Carlsbad maintenance yard. Plaintiff alleges that in March 2023, her supervisor at Carlsbad, Tim Anderson, assigned her to pull signs out of the mold-contaminated “C train” as retaliation because she previously rejected him. Shortly after making a complaint regarding the alleged retaliation, Plaintiff was transferred to Kearney Mesa, which was “a significantly farther commute than the Carlsbad yard which caused a hardship for Plaintiff as a single mother.” Plaintiff was later transferred back to Carlsbad in April 2024.

Plaintiff

alleges that upon returning to Carlsbad, she experienced offensive and racist comments from co-workers and continued retaliation from Anderson. Plaintiff made complaints regarding these incidents and was transferred to the Escondido yard before being transferred back again to Carlsbad in September 2024. Plaintiff alleges conduct by Anderson that made her feel uncomfortable and that were retaliatory, as well as his alleged favoritism of a white female coworker. Plaintiff was terminated from her position in April 2025. On December 29, 2025, Plaintiff filed the instant action asserting numerous claims under the Fair Employment and Housing Act (FEHA).

RULING: Granted.

Request for Judicial Notice:

Granted.

The Court takes judicial notice of the existence of Plaintiff’s complaint filed in the instant action and her complaint filed with the Civil Rights Department. (Evid. Code, § 452, subd. (c).) Judicial notice is also taken of pages 3 and 71 of the “California Roster 2026,” published by the Secretary of State, showing that Defendant’s address is in Sacramento and that the Attorney General maintains an office in Los Angeles. (Id. § 452, subd. (h).)

Evidentiary Objections: Overruled
in part.

Defendant's Objection No. 3 to the declaration of Ann Hendrix and its objections to the exhibit subject to Plaintiff's request for judicial notice are overruled. The Court does not rule on the remaining objections because they are immaterial to disposition of the motion.

Defendant moves to transfer the action to San Diego County, arguing that venue lies in San Diego under the FEHA venue statute. Defendant alternatively contends transfer promotes the convenience of witnesses and ends of justice. Plaintiff opposes the motion, maintaining that venue is proper in Los Angeles County. Because venue is proper in San Diego rather than Los Angeles, Defendant's motion is granted.

"Except as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court." (Code Civ. Proc., § 396b, subd. (a).)

"Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action. If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the county where the injury occurs or the injury causing death occurs or the county where the defendants, or some of them reside at the commencement of the action, is a proper court for the trial of the action." (Code Civ. Proc., § 395, subd. (a).)

"Venue is determined based on the complaint on file at the time the motion to change

venue is made.” (Brown v. Superior Court (1984) 37 Cal.3d 477, 482.) In a FEHA action, venue is proper in the county in which: (1) “the unlawful practice is alleged to have been committed”; (2) “the records relevant to the practice are maintained and administered”; or (3) “the aggrieved person would have worked . . . but for the alleged unlawful practice” (Gov. Code, § 12965, subd. (c)(3).) “[I]f the defendant is not found within any of these counties, an action may be brought within the county of the defendant’s residence or principal office.” (Ibid.) “[T]he special provisions of the FEHA venue statute control in cases involving FEHA claims joined with non-FEHA claims arising from the same facts.” (Brown, supra, 37 Cal.3d at p. 487.)

Venue

is proper in San Diego County under the FEHA venue statute. The alleged harassment, retaliation, and discrimination occurred at Plaintiff’s different worksites in San Diego County. [Compl. ¶¶ 11-41.] Plaintiff would have continued to work in San Diego County but for Defendant’s alleged unlawful conduct. [Id. ¶¶ 8, 41.] And all of the records relevant to the unlawful conduct are maintained in San Diego County. Defendant submits the declaration of Denella Morgan, the Deputy District Director, Administration, for District 11 who is responsible for “direct resolution of highly technical, highly sensitive and confidential personnel matters” and provides advice to supervisors “regarding effective performance management, progressive discipline, discrimination complaints, and labor relations issues.” [Morgan Decl. ¶ 4.] She states that the employees identified in Plaintiff’s complaint are employed in District 11, San Diego, and that “[s]upervisor’s desk and drop files and relevant records” and “operational records relating to the employment of the Plaintiff and others with whom she would interact through her employment” are maintained in San Diego. [Id. ¶ 7.] Plaintiff’s allegations and the evidence presented thus show that San Diego is the proper venue under the FEHA venue statute.

To

show venue is proper in Los Angeles County, Plaintiff relies on venue being proper in Sacramento County under the FEHA venue statute. This is because under Code of Civil Procedure section 401, subdivision (1), [w]hensoever it is provided by any law of this State that an action or proceeding against the State or a department, institution, board, commission, bureau, officer or other agency thereof shall or may be commenced in, tried in, or removed to the County of Sacramento, the same may be commenced and tried in any city or city and county of this State in which the Attorney General has an office.” Thus, if venue is proper in

Sacramento County, then it is also proper in Los Angeles County because the Attorney General maintains an office there. [Pl.'s RJN, Ex. 1.] On this point, Plaintiff argues that venue is proper in Sacramento County under the FEHA venue statute because records relevant to the alleged unlawful practice are maintained there by virtue of Plaintiff's official personnel file being located there as well as those investigating her complaints. Alternatively, if Defendant is not "found" in any of the counties identified in the FEHA venue statute, then venue is proper at its place of business in Sacramento, again making Los Angeles County a proper forum. [Ibid.] For the reasons described below, Plaintiff's arguments are unavailing.

Plaintiff's

arguments do not support a finding of venue in Sacramento County. First, Defendant is "found" in the counties identified by the FEHA venue statute, because, as explained above, the alleged unlawful practices occurred in San Diego County and Plaintiff would have worked there but for the unlawful conduct. Plaintiff's equating of "found" as used in the statute with residence or principal place of business is contrary to the plain meaning of the statute and makes the fallback provision redundant. Second, the fact that Plaintiff's official personnel file is located in Sacramento County or that those investigating her complaints were located there does not mean that is where the records "relevant to the practice are maintained and administered." (Gov. Code, § 12965, subd. (c)(3).) In contrast to Morgan's testimony that supervisors' desk and drop files, relevant records to the adverse actions, and operational records relating to Plaintiff and other employees' employment are maintained in San Diego [Morgan Decl. ¶¶ 6-7], Plaintiff does not explain what information the official personnel files contain. [See Hendrix Decl. ¶ 3.] Furthermore, where an investigation is conducted is not the same as where the records pertinent to the investigation are "maintained and administered." Plaintiff has therefore failed to show that venue is proper in Los Angeles via proper venue in Sacramento. Defendant's motion is thus granted.

The

action is ordered transferred to San Diego County. All scheduled items on calendar are vacated.

Defendant to give notice.